

Dinesh Chandra v. State of U.P. & Ors.

Allahabad High Court · Division Bench · 2 December 2009 · Writ-C No. 65338 of 2009 · **Writ disposed; EE to decide Clause 6.5 complaint in three months**

HEADNOTE

A consumer's writ seeking consideration of an objection to a post-reconnection bill is disposed of on the licensee's concession that under Clause 6.5 of the U.P. Electricity Supply Code, 2005 the Executive Engineer is competent to attend the complaint. The Executive Engineer is directed to consider the complaint and decide it according to law, preferably within three months of production of a certified copy. The Court does not decide the bill on merits.

FACTUAL SUMMARY

Dinesh Chandra petitioned the Allahabad High Court for a direction that the Executive Engineer consider his representation objecting to a bill issued after reconnection. Counsel pointed to a Superintending Engineer letter dated 10 February 2009 asking the Executive Engineer to act on the complaint. Counsel for the distribution licensee submitted that under Clause 6.5 of the Electricity Supply Code the Executive Engineer was the competent authority to attend such a complaint.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer

HOLDING

On a writ seeking consideration of a consumer's objection to a bill issued after reconnection, Clause 6.5 of the U.P. Electricity Supply Code, 2005 makes the Executive Engineer the competent authority to attend the complaint; the petition is disposed of with a direction to the Executive Engineer to consider the complaint and decide it according to law, preferably within three months of production of a certified copy. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer's writ seeking consideration of an objection to a post-reconnection bill is disposed of on the licensee's concession that under Clause 6.5 of the U.P. Electricity Supply Code, 2005 the Executive Engineer is competent to attend the complaint.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S OBJECTION TO THE POST-RECONNECTION BILL

Left to the Executive Engineer to decide according to law under Clause 6.5. ¶ 1